



DECISION

Complaint No. : POS/7450/2022/Adv-M
POS/8484/2022/Adv-M

Name and address of the complainant : Mr. Aneeq Alam son of Mumtaz Alam, A-616, Street-8, Block-7, Gulistan-e-Jouhar, Scheme-36, Karachi.

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali
Advisor-M

Vetted by :

Subject : DELAY IN HANDING OVER POSSESSION OF CATEGORY-B, SHOPS IN EMPRESS MALL, SADDAR, KARACHI.

COMPLAINT:

Mr. Aneeq Alam, resident of Gulistan e Jauhar, Scheme 36, Karachi, filed his complaint dated 28.11.2022 against Karachi Metropolitan Corporation as possession of shop No. 59 in Category B of Empress Mall, Saddar, allotted to him in 2014 was not being handed over despite full payment being made. On 3.10.2023 he filed another complaint on the same issue. He requested the intervention of this Institution.

PROCEEDINGS:

2. After admitting the complaints for investigation under section 10 of the Establishment of the Office of the Ombudsman for the Province of Sindh Act 1991, the same were forwarded to the Senior Director Estate, Karachi Metropolitan Corporation for report.
3. In a report bearing No. Dir/Estt/KMC/203/2025 dated 9.5.2024, the Deputy Director, Estate Department, KMC, stated that this project was initiated by the then City District Government Karachi, but after the abolishment of the City Government, the project was handed over to the Estate Department KMC. He further stated that the project is sub-judice in various Civil Courts, and further progress is also obstructed by issues pertaining to the utilities in the area. He also stated that most of the allottees have stopped making payments which has resulted in the shortfall of finances also.
4. In a hearing held on 22.8.2024 Mr. Akmal Dar, Deputy Director Estate reiterated the points raised by him in the above-mentioned report i.e. disputes between KMC and KDA; utilities; and construction. He was directed to furnish a detailed report on the issue.
5. Another similar complaint POS/3323/2022 filed by Syed Saleem Ahmad about possession of shop not being handed over in Empress Mall,

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Saddar, was decided by the then Ombudsman on 31st January 2023, directing the then Administrator KMC and the Project Director of this project to ensure that the construction work of this project is completed as early as possible and possession is delivered to the allottees.

6. While pursuing the implementation of this decision the Deputy Director, Estate Department, KMC vide his report No. Dir/Estt/KMC/058/2025 dated 8.10.2025 had stated that KMC is constantly making efforts to respond to the Judicial proceedings filed by the affected persons, and to sort out the issues hindering the completion of this project.

7. He had further stated that the Engineering Department, KMC, is in the process of formulating a revised PC 1 for the completion of the project, as the grey structure of the Ground +3 building is complete and the finishing is to be taken up. He had also stated that negotiations are being held with K Electric regarding the construction and installation of Sub-Station for the project. He had also reported that once these obstructions are removed, the allottees would be pursued to make the balance payments so that KMC could complete this project and handover possession to the allottees.

FINDINGS:

8. From the above proceedings, it is clear that this project of Empress Mall launched in 2008 has not been completed yet, though it was handed over to Karachi Metropolitan Corporation, after dissolution of City District Government Karachi. It is obvious that meaningful steps have not been taken to resolve the utility issues and pending litigation, which highlights maladministration on the part of Karachi Metropolitan Corporation, due to which the people who have booked shops and offices, including the present complainant, are undergoing financial stress as possession of the booked shop is not being handed over.

DECISION:

9. In view of the above findings, I, under Section 11 of the Establishment of the Office of Ombudsman for Province of Sindh Act, 1991, hereby direct the Metropolitan Commissioner KMC to attend to this matter in a responsible manner and take steps to ensure that this Project is completed within one year and possession of the shops are handed over to bonafide allottees.

“Given under my hand and seal of office”

Sd/-

(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS

OMBUDSMAN SINDH

Karachi, dated 21-5 May, 2026

